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THIS STAMP PAPER FORMS AN INTEGRAL PART OF THE MEMORANDUM OF UNDERSTANDING DATED 6 MAY 2021 BY AND AMONGST MAGNAVI INDUSTRIAL PARKS PVT LTD LIMITED, DSA PROJECTS PRIVATE LIMITED, BLUE & SUNSHINE HABITATS PRIVATE LIMITED AND [illegible]

KHAITAN & CO

SECURITIES PURCHASE AGREEMENT

[redacted]

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This [illegible] AGREEMENT is executed on this 8th day of May 2021 ("Execution Date") at Bangalore, Karnataka, India:

BY AND AMONGST:

1. [illegible] a company incorporated under the Companies Act, 1956, having its registered office at [illegible] (hereinafter referred to as "[illegible]", which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the FIRST PART;

AND

2. [illegible] PRIVATE LIMITED, a company incorporated under the Companies Act, 1956, having its registered office at [illegible], Karnataka, India (hereinafter referred to as "[illegible]", which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the SECOND PART;

AND

3. [illegible], a company incorporated under the Companies Act, 1956, having its registered office at [illegible], Karnataka, India (hereinafter referred to as the "Company", which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the THIRD PART;

AND

4. [illegible] a company incorporated under the Companies Act, 1956, having its registered office at [illegible], Karnataka, India (hereinafter referred to as "[illegible]", which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the FOURTH PART;

[illegible] (collectively referred to as the "Parties" and individually as a "Party").

RECITALS:

A. [illegible]

B. [illegible]

C. [illegible]

(c) The Parties are now entering into this Agreement to record the terms and conditions agreed between them for the sale of the Sale Shares by SEA to DPW including their respective rights and obligations in relation to the Transaction Costs, and to give effect to the Transaction Documents and Ancillary Matters.

NOW THIS DEED WITNESSES, in consideration of the foregoing and other good and valuable consideration, the receipt and adequacy of which is hereby acknowledged, the Parties covenant as follows:

1 [illegible]

Unless a contrary intention appears, whether the context otherwise requires, or unless by the terms defined elsewhere in this Agreement, the definitions [illegible] in Part A of SCHEDULE 1 [illegible] shall apply throughout this Agreement. This clause prevails where any [illegible] in this Agreement should be in accordance with the rules of construction set out in Part B of SCHEDULE 1 [illegible].

2 AGREEMENT TO PURCHASE

2.1 Subject to the terms and conditions of this Agreement, the fulfilment of the Conditions Precedent or the satisfaction of them, and relying on the representations, warranties and covenants of SEA, DPW agrees to purchase from SEA, and SEA agrees to sell to DPW, the Sale Shares, free and clear from all Encumbrances and with all rights [illegible] on and after the Completion Date.

2.2 [illegible] Subject to the Completion occurring, the Purchase Price for the Sale Shares shall be [illegible] Part A of SCHEDULE 2 [illegible] Completion [illegible] Payment on the Completion Date] [illegible] and Closing Cash, immediately prior to Closing) at any time at Part B of SCHEDULE 2 [illegible] Sale and Holding Period, notwithstanding anything to the contrary, and subject to Closing Cash, [illegible] and Closing is set out in Part C in SCHEDULE 2 [illegible] Completion Statement, Completion Accounts and Closing].

2.3 [illegible] Subject to [illegible] DPW, and the Company shall not [illegible] any and all pre-existing rights and other restrictions or rights including any rights of first refusal, tag along, co-sale, pre-emption or the Articles (in Clause 3) [illegible] as to control that the holder of the Sale Shares or DPW, a predecessor entity or [illegible] of the Agreement [illegible] including, [illegible] agreement of a similar kind or any and all pre-existing rights, rights of first offer, rights of first refusal and other rights [illegible] or [illegible] whether conditional or [illegible] or otherwise, [illegible] to permit the sale and transfer of the Sale Shares to DPW in accordance with the terms of this Agreement.

3 [illegible] OF THE CONSIDERATION SHARES

3.1 On the Completion Date:

3.1.1 SEA shall deliver to DPW, a duly [illegible] (or [illegible]) of the Consideration Shares in [illegible] [and, where applicable, [illegible], authorising the execution, delivery and performance of this Agreement and authorising an officer(s) to execute this Agreement on its behalf];

3.1.2 [illegible]

[illegible] [illegible] [illegible] [

[illegible]

[illegible]

[illegible]

be divisible by the Parent pro rata Closing Date.

6.2 On the Closing Date, the Parties shall do or cause to be done, each of the matters set out in [illegible] Closing Arrangements] to the [illegible].

6.3 All amounts for Closing per share in [illegible] Closing Balance Sheet are expressed in these amended [illegible] and on the assumed net cash thereof, and the Closing is conditional [illegible] and the Closing Date as defined in the Closing Accounts for the Closing are [illegible] to the extent that all Dilutive Acquisition Net [illegible] are not [illegible] as the Closing Date for the purposes of this Agreement.

6.4 [illegible] Parties, [illegible] Closing, [illegible] and the directors [illegible] the Board of the Company hereby unconditionally and irrevocably [illegible] the Company and its [illegible] Officers and Directors (together, the "Company Releasees") [illegible] and all claims and liability [illegible] any of the Company Releasees relating [illegible] of the operations or conduct of the Business or any [illegible] transactions [illegible] of events or dealings to this period of time [illegible] the Closing.

6.5 Effective upon Closing, the Company and [illegible] hereby [illegible] and [illegible] to [illegible] and [illegible] and [illegible] [illegible] Board of Directors [illegible] and [illegible] (the "[illegible] Releasees") [illegible] and all claims and rights which any [illegible] have in any [illegible] and all the [illegible] in each case arising [illegible] relating solely to [illegible] as a shareholder or [illegible], or the [illegible] ownership of [illegible] or [illegible] the Board of the Company, personal [illegible], and notwithstanding anything to the contrary [illegible] in this [illegible] shall have the effect of [illegible] or releasing any claim [illegible] of or in relation to [illegible] and/or the Company's [illegible] Fundamental [illegible] or [illegible]. For any of the representations, warranties, covenants and [illegible] contained in or made pursuant to this Agreement, and/or [illegible] and [illegible] and/or gross negligence [illegible] the [illegible].

7 [illegible]

7.1 [illegible] Agreement and [illegible] [illegible] (a) [illegible] (b) [illegible] (c) [illegible] (d) [illegible] (e) [illegible] (f) [illegible] (g) [illegible] (h) [illegible] (i) [illegible] (j) [illegible] (k) [illegible] (l) [illegible] (m) [illegible] (n) [illegible] (o) [illegible] (p) [illegible] (q) [illegible] (r) [illegible] (s) [illegible] (t) [illegible] (u) [illegible] (v) [illegible] (w) [illegible] (x) [illegible] (y) [illegible] (z) [illegible] (aa) [illegible] (bb) [illegible] (cc) [illegible] (dd) [illegible] (ee) [illegible] (ff) [illegible] (gg) [illegible] (hh) [illegible] (ii) [illegible] (jj) [illegible] (kk) [illegible] (ll) [illegible] (mm) [illegible] (nn) [illegible] (oo) [illegible] (pp) [illegible] (qq) [illegible] (rr) [illegible] (ss) [illegible] (tt) [illegible] (uu) [illegible] (vv) [illegible] (ww) [illegible] (xx) [illegible] (yy) [illegible] (zz) [illegible] (aaa) [illegible] (bbb) [illegible] (ccc) [illegible] (ddd) [illegible] (eee) 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10. [illegible]

10.1 [illegible]

This Agreement shall be executed simultaneously in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument, and the Parties may execute this Agreement by signing and delivering one or more signature pages by [illegible]. The delivery of signed counterparts by electronic transmission (e.g., email or "portable document format" (.pdf)) shall be as effective as signing and delivering the [illegible] in person.

10.2 [illegible]

This Agreement shall be binding upon and inure to the benefit of the Parties and their successors and assigns; provided, however, that no Party may assign, delegate or otherwise transfer this Agreement or any of its rights or obligations hereunder without the prior written consent of the other Party, except that either Party may assign this Agreement in connection with a merger, reorganization, or sale of all or substantially all of its assets to which this Agreement relates, provided that the successor entity agrees in writing to be bound by all of the terms and conditions of this Agreement.

10.3 [illegible]

This Agreement, together with the Schedules and all [illegible] constitutes the entire agreement and understanding of the Parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements, understandings, negotiations and discussions, whether oral or written, between the Parties with respect to such subject matter.

10.4 [illegible]

This Agreement shall be governed by and construed in accordance with the laws of [illegible], without giving effect to any choice or conflict of law provision or rule that would cause the application of the laws of any jurisdiction other than [illegible]. Any legal suit, action or proceeding arising out of or relating to this Agreement or the transactions contemplated hereby shall be instituted exclusively in the courts of [illegible], and each Party irrevocably submits to the exclusive jurisdiction of such courts in any such suit, action or proceeding. [illegible]

10.5 [illegible]

Any waiver, amendment, modification or addition to this Agreement shall be valid only if set forth in a written instrument executed by the Parties. [illegible]

10.6 [illegible]

Subject to the other terms of this Agreement:

(a) [illegible]

(b) [illegible]

(c) [illegible]

12.3 [illegible]

(a) [illegible]

12.4 [illegible]

[illegible]

12.5 [illegible]

(a) [illegible]

(b) [illegible]

12.6 [illegible]

[illegible]

12.7 [illegible]

[illegible]

[redacted]

[redacted]

[redacted]

[illegible]

[illegible]

[illegible]

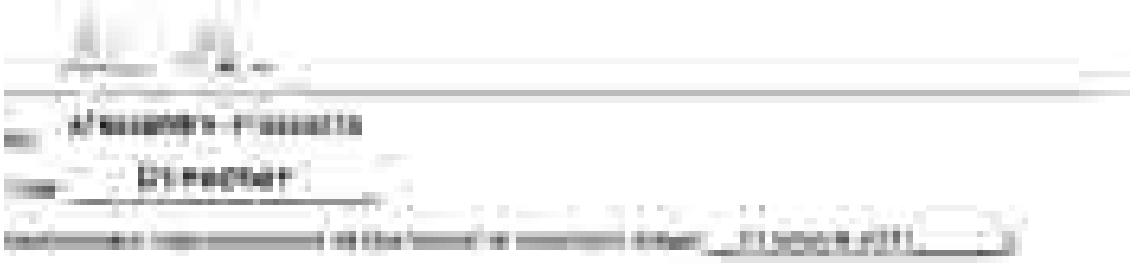
[illegible]

[redacted]

[redacted]

[redacted]

[redacted]



[illegible]

[illegible]

[illegible]

[illegible]	[illegible]	[illegible]	[illegible]
[illegible]	[illegible]	[illegible]	[illegible]

[illegible]

[illegible]	[illegible]	[illegible]	[illegible]	[illegible]
[illegible]	[illegible]	[illegible]	[illegible]	[illegible]
[illegible]	[illegible]	[illegible]	[illegible]	[illegible]
[illegible]	[illegible]	[illegible]	[illegible]	[illegible]

[illegible]

[illegible]	[illegible]	[illegible]	[illegible]	[illegible]
[illegible]	[illegible]	[illegible]	[illegible]	[illegible]
[illegible]	[illegible]	[illegible]	[illegible]	[illegible]
[illegible]	[illegible]	[illegible]	[illegible]	[illegible]

[illegible]

[illegible]	[illegible]	[illegible]	[illegible]	[illegible]
[illegible]	[illegible]	[illegible]	[illegible]	[illegible]
[illegible]	[illegible]	[illegible]	[illegible]	[illegible]
[illegible]	[illegible]	[illegible]	[illegible]	[illegible]

[illegible]

[illegible] any [illegible] [illegible] [illegible] as [illegible] [illegible] [illegible]

[illegible]

"[illegible]" [illegible]

[illegible]

"[illegible]" [illegible]

"[illegible]" [illegible]

"[illegible]" [

"Accounting" has the meaning as set forth in Section 1(f) of this Act and shall include the accounting standards as are generally accepted by the Institute of Chartered Accountants of India or other recognized accounting standards prescribed under Applicable Law;

"Act" or "Agreement" have meaning, as context so may require, each of any agreement, contract, arrangement, understanding, undertaking, deed, document, or other instrument or obligation, whether oral or written, and whether express or implied, including any amendments, modifications, supplements, extensions, restatements, annexures, exhibits, schedules, or waivers thereto, in each case as amended, supplemented, or otherwise modified from time to time in accordance with its terms and applicable law;

"Additional Charge" [illegible] [illegible] [illegible]

[illegible]

"Data Party" [illegible]

"Controller" [illegible]

"Processor" [illegible]

"[illegible]" [illegible]

"Standard Clauses" [illegible]

"Processing" [illegible]

2. [illegible]

On behalf of the Agreement, the following terms shall have the meanings ascribed to the [illegible] Clauses and/or Schedules of the Agreement:

[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]

[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]

[illegible] [illegible]

1. [illegible]

2.1 [illegible]

2.2 [illegible]

3.1 [illegible]

3.2 [illegible]

3.3 [illegible]

3.4 [illegible]

3.5 [illegible]

3.6 [illegible]

3.7 [illegible]

3.8 [illegible]

3.9 [illegible]

3.10 [illegible]

3.11 [illegible]

3.12 [illegible]

[illegible]

Article 1

1. [illegible]

2. [illegible]

3. [illegible]

4. [illegible]

Article 2

1. [illegible]

[illegible]

[illegible]

[illegible]

To,

[M]

[illegible]

Sub: Technology Transfers Agreement dated 4th May, 2022 (the "TTA") executed by and amongst [illegible] Industrial Parks Private Limited (the Principal Purchaser) [illegible] and [illegible] Co.[illegible] Pvt. Ltd.

[illegible] TTA [illegible] [illegible] [illegible]

[illegible]

[illegible]

(a) [illegible]

(b) [illegible]

(c) This Section shall terminate [illegible]

(i) [illegible]

(ii) [illegible]

(iii) [illegible]

(d) This Section shall survive [illegible]

(e) Pre-Closing Modifications of ERISA/COBRA Compliance. [illegible]

(f) Post-Closing Modifications of ERISA/COBRA Compliance. [illegible]

(g) [illegible]

(h) [illegible]

(i) [illegible]

(ii) [illegible]

(iii) [illegible]

(i) This Section shall survive [illegible]

(b) the Company shall file a copy of the Articles, evidencing the alteration of the Company's [illegible] shares to [illegible], and the Secretary shall be entitled to be registered as the holder of [illegible] shares;

(c) the Company shall deliver to the [illegible]:

(a) a [illegible] share certificate in the existing or the [illegible] name(s) as the [illegible] requires; and

(b) certified true copy of the resolution together with minutes and register of members [illegible] in Singapore reflecting the [illegible] the [illegible] the [illegible] [illegible] issued;

(d) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(e) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(f) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(g) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(h) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(i) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(j) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(k) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(l) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(m) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(n) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(o) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(p) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(q) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(r) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(s) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(t) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(u) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(v) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(w) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(x) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(y) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(z) the [illegible] shall be entitled to the same rights and privileges as the [illegible] and shall be subject to all the liabilities, restrictions and obligations attached to the [illegible] and all of the provisions of these Articles shall apply to the [illegible] as to the [illegible] issued;

(3) The Secretary shall deliver to CPPC:

(a) [illegible] [illegible] [illegible]

SCHEDULE [illegible] FORM OF CONFIRMATION

To:

[●]

Attention: [●]

Address: [●]

Re: Existing Participation under the Novaethos Participation Agreement dated 8 May 2021 ("PPA") entered into between Gateway Hyperion Sierra Nitrate Limited, DBR Project Nitrate Limited, Sage Logistics Park Nitrate Limited and BBP Asia II SP Holding (HK) Pte. Ltd.

Terms Of Assessment

Your value in the IPA assessment by the Participation Provider on the terms of an agreement between you and the Participation Provider for the purpose of Phase 2 under the PPA.

We hereby confirm that you have satisfied the following Conditions:

(i) [illegible] Commencement Date has been fulfilled;

(ii) [illegible] you have entered into a Participation Agreement with the Participation Provider, and that this Participation Agreement remains in full force and effect.

(iii) [illegible] you have delivered to us a duly executed Letter of Undertaking in the form set out in Schedule [illegible] to the Participation Agreement.

Your participation in [illegible] Allocation Assessment in relation to the Participation Agreement.

Your Participation Agreement is [illegible] and you are entitled to receive an Allocation Assessment in relation to the Participation Agreement.

Yours sincerely,

For and on behalf of DBR Projects Nitrate Limited

Authorised Signatory

[illegible]

1. [illegible]

2.1 [illegible]

2.2 [illegible]

2.3 [illegible]

3.1 [illegible]

(a) [illegible]

(i) [illegible]

(ii) [illegible]

(iii) [illegible]

(iv) [illegible]

(b) [illegible]

3.2 [illegible]

4. [illegible]

4.1 [illegible]

4.2 [illegible]

[redacted]

[redacted]

[redacted]

[redacted]